

HOUSE No. 583

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve student and staff attendance and performance by ensuring air quality monitoring in schools throughout the commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 583

By Representative Garballey of Arlington, a petition (accompanied by bill, House, No. 583) of Sean Garballey for legislation to improve student and staff attendance and performance by ensuring air quality monitoring in schools throughout the commonwealth. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve student and staff attendance and performance by ensuring air quality monitoring in schools throughout the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Relative to the installation and operation of air quality monitoring (AQM)
2 systems in public schools throughout the Commonwealth. For purposes of providing students
3 and staff with a safe and healthy environment in which to learn and work, and to curtail ongoing
4 student and staff absences related to illness, provisions of this legislation shall apply to all public
5 schools with students between grades K-12 on or before January 1, 2026.

6 The provisions included herein are required to ensure the appropriate utilization of AQM
7 systems previously installed in a select number of schools throughout the Commonwealth.
8 Schools that do not yet possess AQM systems shall be required to install such monitoring
9 systems and begin data collection on or before January 1, 2026.

10 SECTION 1(a): for purposes of this section and section 2 inclusive of this act:

(1) “school facility” means any permanent building or portable structure, building, or commercial space owned, rented, operated, leased by a local or regional board of education, including, but not limited to, donated space being used as a classroom or any other space for educational services.

(2) “hours of school activity” means any time throughout the day when students, staff and community members occupy a school facility.

(3) “multipurpose spaces” means rooms and spaces within an educational setting that can be or are used for multiple purposes, including but not limited to meetings, instructional activities, dining, and social gatherings.

(4) “Air Quality Monitor (AQM)” is an instrument for the data collection and measurement of carbon dioxide gas (CO₂), carbon monoxide gas (CO), PM₁₀ (Airborne Particulates less than 10 microns in size), PM_{2.5} (Respirable Particulate Matter less than 2.5 microns in size), VOC (Volatile Organic Compounds), Temperature (T), and Relative Humidity (RH%).

(5) “allergen” means a substance that causes an allergic reaction.

(6) “Mechanical ventilation unit” means the intentional fan-driven flow of outdoor air into a building.

(7) “ventilation verification assessment” means an assessment performed by certified third-party ventilation contractors.

(8) “district officials” means those in authority who have responsibility for the safety, welfare, and orderly conduct of the District and campus community, or who have had such

authority and responsibility delegated to them, including trustees, officers, faculty and administrative staff.

(9) “certified third-party ventilation contractors” means licensed and certified professionals and companies such as mechanical engineer, aerosol engineer, HVAC contractors and air testing and balancing firms, that can perform the analysis, testing, design, construction, control programming, balancing, commissioning, maintenance and operation of services required to make the adjustments to achieve the performance included in these recommendations.

(10) “ACH” means Air Changes per Hour:

(11) “aerosol engineer” means a person specialized in the study of aerosols.

(12) “accessible database” means a database accessible via a public website

SECTION 2: Relative to standards for acceptable air quality in a school building.

Regarding appropriate action or equipment required to meet current industry standards for school buildings as determined by a certified third-party ventilation contractor:

1) Standards for Acceptable Air Quality shall be determined for the purpose of application to all measurements collected via AQM systems and ventilation assessments.

2) Data resulting from any AQM systems or assessments shall be made available publicly via an accessible database.